

Complaint Report (CCRB)

CCRB Case No :	201311111	C/V Report Date :	Tue, 11/26/2013 09:21 AM
Complaint Type :	CCRB	Investigator :	Simon Wang
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Tue, 11/26/2013 09:21 AM	Mode :	Phone
Incident Date(s) :	Tuesday, 11/26/2013 7:00 AM		
Place of Occurrence:	[REDACTED]	Precinct:	76
Location :	Apartment/house	Boro:	Brooklyn
Reason for Initial Contact :	Execution of search warrant		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
CPT	Maximo Tolentino	Subject Officer	891112	Hispanic	084	Premises entered and/or searched - (A) Exonerated

Initial Complaint Narrative

On November 26, 2013, at approximately 7:00 a.m., officers executed a search warrant at § 87(2)(b), in Brooklyn. § 87(2)(b) was inside of her apartment sleeping at the time the officers entered. Also present within the apartment were § 87(2)(b)'s mother, § 87(2)(b) and § 87(2)(b)'s three children who are ages § 87(2)(b). The apartment is under § 87(2)(b)'s name. § 87(2)(b) was placed on the floor with a gun pointed to her while she was placed in handcuffs. Everyone in the apartment was relocated to the living room and the officers who had originally entered § 87(2)(b)'s apartment were replaced with four other uniformed officers. PO1 was described as a Puerto Rican man who was 5' tall, was heavyset, had grey hair and appeared to be in his late 40s or early 50s. PO2 was described as a white man who was 5'11" tall, was skinny, had brown hair and appeared to be in his 30s. PO3 was described as a white man who was 5' tall, was heavyset and appeared to be younger than the other officers. PO1 told § 87(2)(b) that they had reason to believe someone was selling drugs in the apartment. All of the officers said to tell them where the drugs were and asked if there were guns in the house. PO1 told § 87(2)(b) that her husband, § 87(2)(b), was selling drugs. § 87(2)(b)'s apartment was searched and while that was occurring, PO1 told § 87(2)(b) that officers had purchased drugs from § 87(2)(b) on a day when she was in the house. § 87(2)(b) was not sure if the officers had a warrant, but she was shown a photograph of her husband, a picture of the building, and a picture of her door with her address written on it. PO3 said that they had proof, but § 87(2)(b) said that she was a good person. PO3 laughed and PO1 said that they would come back and keep searching until they found what they were looking for. Nothing was found in the search of § 87(2)(b)'s apartment and no summonses or arrests resulted.

Witness

Name of Witness:

[REDACTED]

Address:

[REDACTED]

Contacts:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Gender :

[REDACTED]

Ethnicity:

[REDACTED]

Date of Birth :

[REDACTED]